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Appellate Court Records

IN THE SUPREME COURT OF THE STATE OF OREGON

STOP THE DUMP COALITION, WILLAMETTE VALLEY WINERIES ASSOCIATION, RAMSEY MCPHILLIPS, and FRIENDS OF YAMHILL COUNTY,
Petitioners,
Cross-Respondents,
Petitioners on Review,

v.

YAMHILL COUNTY and RIVERBEND LANDFILL CO.,
Respondents,
Cross-Petitioners,
Respondents on Review.

Land Use Board of Appeals
2016026

A162746

S064894

REPLY BRIEF – PETITIONERS ON REVIEW

Appeal from a July 8, 2016 Final Opinion and Order of the
Land Use Board of Appeals, Opinion by Bassham, Board Member

The Court of Appeals affirmed on petition
and cross-petition on March 22, 2017.
Before Sercombe, P.J., Flynn, J., and DeHoog, J.,
Opinion by Sercombe, P.J.

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I. INTRODUCTION

This matter is before the Supreme Court because it raises important questions of first impression regarding the interpretation of a statute–ORS 215.296–by the Court of Appeals. In their joint response brief on the merits respondents on review Riverbend Landfill Co. ("Riverbend") and Yamhill County (the "county") attempt to skirt those questions. They mischaracterize petitioners' arguments, and then rebut arguments not contained in petitioners' brief. They claim to identify "factual disputes" and substantial evidence issues, and then rebut petitioners' ostensible position. Respondents repeatedly set up and knock down straw men, inviting a reply from petitioners. Petitioners decline to follow down that path.

Petitioners have not asked this Court to review or decide factual disputes or questions of substantial evidence. In spite of broad claims to the contrary, respondents do not present any specific instance in which petitioners have placed anything other than legal issues before this Court.

As the Court of Appeals stated, "[o]ur review of the parties' contentions in this case requires an analysis of the meaning of ORS 215.296(1)." *Stop the Dump Coalition v. Yamhill County* ("*SDC*"), 284 Or App 470, 475, ___ P3d ___ (2017), *rev allowed,* 361 Or 645 (2017). It stated:

> Thus, this case concerns whether LUBA properly interpreted and applied ORS 215.296(1) in its review of the county's findings on the impacts on accepted farm practices by an expanded landfill. * * *

Id. at 476.

The court also held that in the context of petitioners' challenge to the relevant conditions of approval adopted under ORS 215.296(2), the meaning of "significant" in ORS 215.296(1) revolves around a question of law:

> That contention requires an evaluation of the meaning of "significant" in ORS 215.296(1). We determine the legislative intent in the use of the terms "significant" and "significantly" in ORS 215.296 by examining the text, context, and legislative history of the provision together with general maxims of statutory construction. *State v. Gaines*, 346 Or 160, 171-72, 206 P3d 1042 (2009). * * *

Id. at 483-84.

The Court of Appeals interpreted and applied the statute, adopting an entirely new farm impacts test. The question before this Court is whether the Court of Appeals erred in expounding that test. While questions regarding the underlying facts and evidence will logically follow, LUBA will have to review those in the first instance, applying the law this Court enunciates.

Respondents also mischaracterize the Court of Appeals' decision, identifying only limited portions of the farm impacts test the court adopted. Resp Br 5, 24. The court also held:

> "[T]he relevant inquiry is whether the conditioned practice or cost is "significant" because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food. Conditions that are imposed to preserve the profitability of a farm make any subsidized cost increase or required marketing insignificant as a matter of law."

SDC, 284 Or App at 486.

They also make inaccurate references to the factual record, and overstate the effect of several cases they cite.

For the reasons presented below, respondents' arguments are not well taken. This Court should reverse the judgment of the Court of Appeals and remand this case to LUBA for further proceedings in accordance with the opinion of this Court.

II. MOTION TO STRIKE

Riverbend filed a Response to Petition for Review on May 12, 2017 which did not include a cross-petition for review ("the party's contingent request for review of any question properly before the Court of Appeals in the event that the court grants the petition for review") under ORAP 9.10(1). The county filed no response to the petition for review.

Nonetheless, respondents now ask this Court to reverse that part of the Court of Appeals' decision which affirmed LUBA's remand to the county to consider cumulative impacts of the proposed nonfarm use upon individual

farms. Resp Br 44-50. Having failed to raise this issue in Riverbend's response to the petition for review, respondents should not be permitted to raise it for the first time in their merits brief. That portion of respondents' brief should be stricken by the Court.

In the alternative, petitioners move the court for an order allowing this brief to be extended by 474 words beyond the 4,000 allowed under ORAP 5.05(1)(b)(i)(E), in order to accommodate this motion and petitioners' response to respondents' *de facto* cross-petition.

III. LEGAL QUESTIONS ON REVIEW AND PROPOSED RULES OF LAW

Respondents state without more that petitioners have added "inaccurate factual statements." Respondents fail to identify any such inaccuracies. Respondents also mischaracterize petitioners' position regarding the contested conditions of approval the county adopted. Petitioners argue that compliance with both ORS 215.296(1)(a) and (1)(b) is required, whether or not the showing of compliance is attempted through conditions of approval. With respect to significant increases in the cost of accepted farm practices, the language of the statute is clear. If there is a significant increase in costs, it does not matter who incurs or pays those costs, even if it is the applicant.

For the reasons explained in petitioners' brief, the conditions the county imposed at Riverbend's request are not conditions allowed under ORS 215.296(2). While petitioners have their disagreements with the examples suggested in the state agencies' brief, they are nonetheless distinguishable from the conditions the county adopted in this case. First, these examples assume the assent of the affected farmers, and that the changes in question are not imposed over their objection. Second, it appears that the outcome in those examples is the adoption of new farm practices which are nonetheless *accepted* farm practices. Litter patrols on hayfields are not accepted farm practices, nor is the sale of fruit for use as garbage.

Petitioners have not raised any question regarding the Court of Appeals' standard of review of a LUBA decision, whether in their petition for review or in their merits brief. Petitioners respectfully submit that the court's standard of review is not an issue here.

IV. NATURE OF PROCEEDING AND MATERIAL FACTS

A. Nature of Action and Relief Sought.

Respondents ask this Court to reverse the Court of Appeals in its affirmance of LUBA's remand to the county for the evaluation of cumulative impacts. Petitioners reiterate the objection raised above, and again move to strike respondents' request for relief and the underlying arguments.

B. Material Facts.

Respondents contend that Riverbend's landfill is not within a bend of the South Yamhill River. The landfill's location within a bend in the river is clearly depicted in submittals from one of Riverbend's consultants at pages 465-66 of the county's record transmittal to LUBA in *Stop the Dump Coalition v. Yamhill County* ("*SDC*-1"), 72 Or LUBA 341 (2015). Copies of those pages are attached as Appendix A, with the "Project Site" clearly labeled by said consultants.

V. SUMMARY OF RESPONDENTS' ARGUMENT

Respondents contend in part that conditions of approval adopted under ORS 215.296(2) are "appropriate if they preserve the productivity of the agricultural land potentially impacted by the non-farm use." For all the reasons set out in petitioners' brief, this is an incorrect statement of the law regarding such conditions of approval. If respondents are correct, the statutory test would be met even if the affected farmer had to change crops because the proposed nonfarm use renders his/her land no longer productive for his/her current crops. Additionally, the word "appropriate" does not reflect the need to satisfy the requirements of ORS 215.296(1) through those conditions of approval.

In arguing that conditions of approval are satisfactory when they restore the affected farm to the condition it would have been in without the infliction

of the nonfarm use, respondents misunderstand the nature of the pre-nonfarm use condition of the affected farms here. For McPhillips Farms, that condition would include no landfill litter, no litter patrols, and no gulls from the landfill eating grass seed plugs. For the Frease farm, that condition would include no gulls or crows from the landfill defecating on the farmer's fruit.

VI. RESPONDENTS' ARGUMENT

A. Discussion of Applicable Law.

Respondents are incorrect in stating that the only issue in this case is the correct "application" of ORS 215.296. The threshold issue is the interpretation of the language of that statute.

1. The Purpose of ORS 215.296(1).

Petitioners nowhere suggest that ORS 215.296(1) establishes a "no impacts" test. Petitioners' arguments recognize and flow from petitioners' recognition that the test is one of significant impacts.

Respondents misstate the county's obligations under the statute. The county must do more than describe farm practices on surrounding lands, and identify the impacts of the proposed nonfarm use upon those practices and the costs of engaging in those practices. The county must address all relevant evidence placed in the record before making findings and entering an order approving the nonfarm use. The county must be able to determine that the

applicant has met its burden of proving compliance with the farm impacts test–the *insignificance* of (1) forced changes in accepted farm practices, *and* (2) increases in the cost of those practices.

Respondents contend that the keys to satisfying the requirements of ORS 215.296 are procedural and evidentiary. They argue that the significance of impacts under ORS 215.296(1) is a purely factual rather than a legal issue. Respondents are wrong. The application of ORS 215.296(1) and (2) requires a proper interpretation and understanding of the meaning of the statute before one can correctly evaluate the identified impacts. *SDC*, 284 Or App at 483-84.

At page 11 and later at page 32 of their brief, respondents overstate the effect of LUBA's holding in *Dierking v. Clackamas County*, 38 Or LUBA 106, 120-21, *aff'd* 170 Or App 683, 13 P3d 318 (2000). While LUBA recognized that the county was "not required under ORS 215.296(1) to anticipate and consider the accepted farming practices that might be associated with every possible farm use to which surrounding lands may be put in the future," it also held:

> In applying ORS 215.296(1), it is entirely appropriate for the applicant and county to begin by visually surveying surrounding lands to identify the farm and forest uses to which those lands are devoted. Based on that survey, it is also appropriate to identify the accepted farming practices that are associated with the observed farm and forest uses. Unless some question is raised about the accuracy or completeness of the survey, the analysis required by ORS 215.296(1) may be limited to the

> farm uses and accepted farming practices identified through such a visual survey. *However, once petitioner advised the county and applicant that he was in the process of changing the existing farm use of the property to an organic herb farm and botanical garden, the applicant and the county were no longer entitled to rely on the visual survey as the sole basis for determining the farm use to which petitioner's property is devoted.*

(Emphasis added.)

Thus, the proposed nonfarm use must be evaluated in light of farm uses affected farmers specifically identify as uses they intend.

2. Permissibility of Conditions (ORS 215.296(2)).

Here, respondents identify a straw man and knock it down. Petitioners do not contest the potential availability of conditions of approval under ORS 215.296(2) to satisfy the significant impacts test of ORS 215.296(1).

3. Respondents Address a Limited Portion of the Court of Appeals' Discussion of the Law Relating to Conditions.

Respondents recite only a portion of the court's analysis of the law regarding conditions of approval. Resp Br 13; *SDC*, 284 Or App at 482. The more pertinent parts of the court's opinion are discussed at length in petitioners' brief. Regardless, even in the cited excerpt, it is apparent that the court conflates ORS 215.296(1)(a) and (1)(b), deeming purported satisfaction of the cost factor of subsection (b) to satisfy the change-in-accepted-farm-practices factor of subsection (a).

B. The Court of Appeals Erred in Affirming LUBA and the County Regarding Impacts on Individual Farms.

Respondents invite a walk through the weeds of the county's evidentiary record and findings in *SDC 1* and *SDC 2* (*Stop the Dump Coalition v. Yamhill County*, 74 Or LUBA 1 (2016)), and the language of LUBA's opinions in each case. Petitioners do not accept respondents' characterization of the record or LUBA's opinions. However, as we have stated, the issue before this Court is the new farm impacts test the Court of Appeals expounded. Petitioners will attempt to confine their arguments to that issue, while nonetheless noting respondents' misstatement of LUBA's holdings.

As explained in petitioners' brief, LUBA rejected the county's findings and conclusions of insignificance regarding the McPhillips and Frease farms. While respondents contend that the county took the "extra step of imposing conditions of approval to 'remove any doubt' about the significance of impacts from the landfill on those farms" (Resp Br 16), LUBA saw things differently:

> As discussed above, we have affirmed the county's conclusions that individual impacts, as conditioned, are insignificant. *In some cases, our affirmance rested heavily or entirely on the conditions that were imposed*. Indeed, in addressing litter impacts on the McPhillips farm, we concluded that it was a close question, even considering the imposition of conditions. * * *

SDC 2, 74 Or LUBA at 37.

1. LUBA Reviewed the County's Conditions of Approval.

This is true as far as it goes. Petitioners have identified the fatal flaws in those conditions.

2. As Explained in Petitioners' Brief, the Court of Appeals Erred in its Review of LUBA's Decision Regarding Conditions of Approval.

a. Standard of Review.

Petitioners raise no dispute as to the court's standard of review in reviewing a LUBA decision. Petitioners have not challenged any factual findings in their brief.

b. Litter Conditions.

Here, respondents rely upon the inexplicable suggestion by the Court of Appeals that, since litter patrols are not an accepted farm practice in the cultivation of hay, the addition of such patrols does not change accepted farm practices. Again, the accepted practice in question is farming hay *without litter patrols*. As characterized by respondents, "the only change was the introduction of a non-farm practice." Resp Br 19. In other words, the imposition of a significant, unaccepted farm practice upon an unwilling farmer produces "no need for the Court to undertake further analysis under ORS 215.296(1)(a)." *Id*. For the reasons set out in petitioners' brief, a correct reading of the statute demonstrates the absence of logic in this argument.

Respondents then refer to the court's conclusion regarding significant impacts under ORS 215.296(1). Resp Br 20. Both the Court of Appeals and LUBA (*SDC 2*, 74 Or LUBA at 13) rely upon the legal conclusion that a significant increase in the cost of accepted farm practices is no longer significant if someone else pays. As explained in petitioners' brief, there is no basis in the statutory language for that conclusion. A significant increase in the cost of accepted farm practices is significant regardless of who pays.

Further, respondents join LUBA and the Court of Appeals in overlooking the most fundamental flaw in this analysis. Compliance with ORS 215.296(1) requires compliance with subsections (a) and (b). A significant change in accepted farm practices is a significant change regardless of whether additional costs are incurred and regardless of who pays those costs.[1]

3. Petitioners Do Not Argue that Significant Impacts Cannot Be Mitigated (Rendered Insignificant) through Conditions of Approval.

Petitioners nowhere assert that conditions of approval adopted under ORS 215.296(2) cannot serve to demonstrate compliance with the farm impacts

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[1]Petitioners note that at footnote 5 on page 20, respondents mischaracterize petitioners' arguments before the Court of Appeals regarding significant impacts upon the Frease farm. Pet Ct App Opening Br (Amended) 14-16. Petitioners argued that Conditions 26 and 27 effect significant changes in both accepted farm practices and in the costs of those practices; that these are freestanding, independent criteria; and that the changes in each would be significant.

test of ORS 215.296(1). Petitioners have *not* argued that *any* increase in the cost of farm practices is or must be deemed significant. Respondents' contention to the contrary finds no support in either of petitioners' briefs filed in the Court of Appeals. To the extent that the court may have construed petitioners' arguments below in the manner respondents describe, the court's characterization was incorrect.

Respondents distract with another straw man when they suggest that the above misunderstandings of petitioners' arguments somehow give rise to "the primary reason for their appeal to this Court." Resp Br 21. Respondents are incorrect. This proceeding concerns the new farm impacts test adopted by the Court of Appeals, nothing more, nothing less.

a. As Explained in Petitioners' Brief, Petitioners' Argument Is Consistent with the Plain Text of ORS 215.296.

Respondents pursue the same straw man here, misconstruing petitioners' arguments regarding the statute. Petitioners have argued the meaning of significance under the statute at length. Petitioners emphasize the importance of the word "significant" in ORS 215.296(1)(a), and the words "significantly increase" in ORS 215.296(1)(b). These terms lie at the heart of petitioners' arguments regarding the farm impacts test.

b. The Court of Appeals' Farm Impacts Test Contradicts the Context and Purpose of ORS 215.296.

As a general rule of statutory construction, when there is any inconsistency between general and particular provisions, "the latter is paramount to the former so that a particular intent controls a general intent that is inconsistent with the particular intent." ORS 174.020(2). ORS 215.296 and other statutes carry out the purpose of the policy of ORS 215.243(2). Its language is clear and specific, emphasizing protection of accepted farm practices on individual farms and the protection of farmers from significant increases in costs. The language of ORS 215.243(2) provides no permissible pretext for ignoring the language of ORS 215.296.

c. Purpose of Conditions in this Case.

The purpose of the conditions of approval challenged below was to find a way for the county to get to "yes" in light of LUBA's remand in *SDC 1*. For the reasons explained in petitioners' brief, those conditions initiate rather than mitigate significant changes in accepted farm practices on the McPhillips and Frease farms. Accordingly, the standards for approval contained in ORS 215.296(1) were not "satisfied through the imposition of conditions" under ORS 215.296(2). Under a correct reading of ORS 215.296(1) and (2), Riverbend's failure to demonstrate compliance with ORS 215.296(1)(a)

compelled denial of Riverbend's "as conditioned" application. Respondents continue to rely upon arguments relating to the "costs" factor of ORS 215.196(1)(b), skirting the independent effect of ORS 215.296(1)(a).

Respondents also rely heavily upon the hypothetical examples in the agencies' brief. As petitioners explain above, those examples are not directly applicable to the facts or conditions of approval here. Moreover, if applicants for nonfarm uses need only satisfy subsection (1)(b), they could simply buy and compost the crops of affected farmers, although this would violate the Court of Appeals' test because it would "significantly decrease the supply of agricultural land, the profitability of the farm, or *the provision of food*." *SDC,* 284 Or App at 486. Respondents posit a slippery slope indeed.

Additionally, respondents incorrectly state that the litter conditions arose because Mr. McPhillips claimed that litter patrols increased his costs. Resp Br 28. Beyond that increase in costs, landfill litter damages McPhillips's hay crop and farm machinery. ER-7-8. There was no claim of loss of farm "productivity" because productivity was had no role in the farm impacts test until the Court of Appeals said so below.

Respondents also err in claiming that Ms. Frease "can still farm the same amount of land and will produce the same amount of food she always has."

Resp Br 29. Under Conditions 26 and 27, Ms. Frease would not be producing food, but garbage for the landfill.

C. Reply as to Petitioners' Remaining Arguments

1. The Court of Appeals' Holding.

Petitioners have accurately summarized the opinion of the Court of Appeals. Respondents fail to demonstrate otherwise. Petitioners have accounted for the entire farm impacts test the court set forth, not just pieces of it, and the arguments contained in petitioners' brief are valid. Respondents' arguments to the contrary are unsupportable. Even the limited portion of the court's test respondents cite turns upon "the preservation of productive agricultural land" generally, and neglects the significant impacts upon specific farms and farmers ORS 215.296 was enacted to prevent. Resp Br 34, citing *SDC*, 284 Or App at 485.

Petitioners have addressed a number of respondents' contentions above. We now correct their assertions regarding significant impacts upon the Frease farm. LUBA *did* take note of petitioners' argument regarding loss of multiple buyers and the developed market for Ms. Frease's crops. *SDC 2*, 74 Or LUBA at 24. To the extent any argument about Conditions 26 and 27 is missing from the evidentiary record, it is because those conditions did not emerge until after

the record closed in *SDC 2.* County Rec 54-55; Pet Ct App Opening Br (Amended) 15 n 2.

2. Legislative History of ORS 215.296, and the Effect of ORS 215.296(2).

Respondents misconstrue the history presented by petitioners. Petitioners rely upon the relevant words of all who spoke, including several legislators on the committee in question, and not upon a single remark or multiple remarks of a nonlegislator. *State v. Stamper*, 197 Or App 413, 424-25, 106 P3d 172 (2004). Similarly, petitioners rely upon multiple statements made in committee, not isolated ones. *Davis by & Through Davis Toepfer v. O'Brian*, 320 Or 729, 891 P2d 1307 (1995).

Respondents argue that the legislative history petitioners present is deficient because it lacks reference to the adoption of ORS 215.296(2) as part of 1989 House Bill 2682, Or Laws 1989, chapter 861. However, the addition of subsection (2) did nothing to diminish the unaltered language of subsection (1). Conditions of approval adopted under ORS 215.296(2) are only effective if they assure full compliance with ORS 215.296(1)(a) and (b). Similarly, petitioners do not question the 1989 legislature's emphasis upon the development of a mechanism to enforce such conditions. Petitioners agree that the 1989 legislative discussion was unrelated to the meaning of "significant"

under ORS 215.296(1). That meaning was established by the 1983 Legislative Assembly. It did not change.

Respondents go on to treat ORS 215.296(2) as a freestanding approval standard, not one intended to ensure compliance with the farm impacts test of ORS 215.296(1). However, the latter was its express purpose.

3. The Falconry Condition.

Respondents' argument regarding possibly years-long delays before the "falconry" condition provides effective mitigation overlooks the court's express language. As explained in petitioners' brief, the court recognized and understood petitioners' argument; it simply made the following legal judgment:

> "The issue is not whether the effects of nuisance birds are significant, but whether those effects will force a change in farm practices that significantly inhibits the use of agricultural land for profit. * * * [A]ny temporary effect of nuisance birds on farm practices has no long-term effect of inhibiting the use of agricultural land for profit. * * *"

SDC, 284 Or App at 493.

Contrary to respondents' assertion, the court's opinion stands for the proposition that temporary significant impacts upon accepted farm practices or the costs of those practices do not contravene ORS 215.296(1), even if they continue for years. This is an error of law.

4. Reduced Grape Prices.

Simply stated, the sale of premium wine grapes as premium wine grapes is an accepted farm practice. Whether the reduction in price to that of lower grade grapes is significant is a determination for the county in the first instance. It did not make that determination here, instead dismissing this issue as not cognizable. The evidence Youngberg Hill submitted–a $20,000 annual diminution in sale price–is documented on the record. *SDC 2*, Int-Pet Br 40-41, RT 315-16.

There is no factual dispute. The evidence in the county record identified before LUBA and the Court of Appeals is unrefuted. The court simply made an error of law in holding that the economic damage described is not cognizable under ORS 215.296(1).

VII. PETITIONERS' ARGUMENTS REGARDING CUMULATIVE IMPACTS

There is no contradiction between the "two different horses" of protecting the farm practices of individual farmers and those of the directly affected farms surrounding the proposed use. Resp Br 51. ORS 215.296(1) requires counties to find that impacts of the nonfarm use will not force a significant change in accepted farm practices or significantly increase the cost of those practices "on surrounding lands devoted to farm or forest use."

Von Lubken v. Hood River County, 118 Or App 246, 846 P2d 1178 (1993) neither expressly supports nor rejects petitioners' position. As petitioners have stated, this is a question of first impression for the Court to decide.

VIII. RESPONSE TO CROSS-PETITION REGARDING CUMULATIVE IMPACTS ON A SINGLE FARM

As set out in petitioners' motion to strike, above, respondents ask this Court to reverse that part of the Court of Appeals' decision which affirmed LUBA's remand to the county to consider cumulative impacts of the proposed nonfarm use upon individual farms. Resp Br 44-50. Respondents now invite the Court to examine the county's findings in *SDC 2 vis a vis* LUBA's decision and the subsequent holding of the Court of Appeals. Should the court elect to consider respondents' argument, petitioners respond briefly as follows.

LUBA discussed the county's Findings 136-141 in detail and found them to be insufficient for many of the reasons raised by petitioners. *SDC 2*, 74 Or LUBA at 35-37. The county's statement that the existing landfill "has not forced significant changes in accepted farm practices and has not significantly increased the cost of farm practices" is found in Finding 141. LUBA correctly held that Finding 141 is "extraneous to any cumulative impacts analysis." *Id.* at 35.

The Court of Appeals correctly held:

> We agree with LUBA that, notwithstanding any evidentiary support, those categorical findings do not show how the sum of the effects of the landfill on each multiple-impact farm's accepted practices is not significant. The findings fail to set out the facts about each farm that led to the decision about compliance with ORS 215.296(1).

SDC, 284 Or App at 496.

Finally, the county's findings regarding Ms. Frease's farm (Resp Br 49) address only the impacts upon a single farm, and not the many addressed on the local government record.

For these reasons, the Court should not reverse the decision of the Court of Appeals on the issue of multiple impacts upon individual farms.

IX. CONCLUSION

For the reasons explained here and in petitioners' merits brief, this Court should reverse the judgment of the Court of Appeals due to its misconstruction and incorrect interpretation of ORS 215.296(1) and (2). The Court should remand this case to LUBA for further proceedings consistent with its ruling.

Respectfully submitted this 5th day of October, 2017.

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CERTIFICATE OF SERVICE AND FILING
and Certificate of Word Count

I hereby certify that on the date indicated below, I caused to be filed the attached REPLY BRIEF – PETITIONERS ON REVIEW with the:

State Court Administrator
Supreme Court Building
1163 State Street
Salem, OR 97301-2563

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I further certify that REPLY BRIEF – PETITIONERS ON REVIEW complies with the word count limitation in ORAP 5.05(1)(b)(i)(E) for a reply brief in the Supreme Court; it is proportionately typed, not smaller than 14-point font for the body and footnotes, and contains 3,998 words (in addition to 476 words contained in a motion to strike respondents' *de facto* cross-petition for review set out in section II of this brief, and a substantive response set out in section VIII) .

DATED this 5th day of October, 2017.

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